



SPONSOR: Rep. K. Williams & Sen. Walsh
Reps. Bush, Heffernan, K. Johnson, Osienski,
Michael Smith, Snyder-Hall, Romer, S. Moore; Sens.
Buckson, Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 91

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO SCHOOL MEALS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter I, Chapter 41, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4137C. Expanded income eligibility for free school meals.

(a) For purposes of this section:

(1) "Breakfast" means as defined in 7 C.F.R. § 220.2.

(2) "Community Eligibility Provision" means the special assistance certification and reimbursement alternative under 7 C.F.R. § 245.9(f).

(3) "Department" means the Department of Education.

(4) "Income" means as defined in 7 C.F.R. § 245.6(a).

(5) "Lunch" means as defined in 7 C.F.R. § 210.2.

(6) "National School Lunch Program" means the federal Richard B. Russell National School Lunch Act, 42 U.S.C. § 1751 et seq.

(7) "Provision 1" means the special assistance certification and reimbursement alternative under 7 C.F.R. § 245.9(a).

(8) "Provision 2" means the special assistance certification and reimbursement alternative under 7 C.F.R. § 245.9(b).

(9) "Provision 3" means the special assistance certification and reimbursement alternative under 7 C.F.R. § 245.9(d).

(10) "School Breakfast Program" means the federal School Breakfast Program, 42 U.S.C. § 1773 et seq.

(b) A public school that participates in the School Breakfast Program shall make available a free breakfast to a student whose household income is greater than 185% but is at or below 225% of the federal poverty level.

(c) A public school that participates in the National School Lunch Program shall make available a free lunch to a student whose household income is greater than 185% but is at or below 225% of the federal poverty level.

(d) A public school shall carryover determinations of eligibility for free breakfast and free lunch under subsections (b) and (c) of this section the same way that it handles mandatory and discretionary carryover determinations under 7 C.F.R. § 245.6(c). The public school does not incur liability for the accuracy of the carried over determination.

(e)(1) The Department shall reimburse a public school providing a free school breakfast or free school lunch under this section.

(2) Reimbursements must be made for each budget year and as follows:

a. For breakfasts, reimbursements must be equal to the difference between the federal paid breakfast reimbursement rate and the federal free breakfast reimbursement rate.

b. For lunches, reimbursements must be equal to the difference between the federal paid lunch reimbursement rate and the federal free lunch reimbursement rate.

(f) This section does not apply to a school participating in any of the following:

(1) Community Eligibility Provision.

(2) Provision 1.

(3) Provision 2.

(4) Provision 3.

Section 2. This Act takes effect immediately and is to be implemented beginning July 1, 2026.

SYNOPSIS

This Act makes a student who is ineligible for a free or reduced-price breakfast and lunch under federal law due to household income eligible for a free school breakfast and lunch if that student's household income is at or below 225% of the federal poverty level.

Under federal law, a student is eligible for a free school breakfast and lunch if that student's household income is at or below 130% of the federal poverty level. HS 2 for HB 125, from the 152nd General Assembly, further expanded student eligibility for a free school meal for Delaware students whose household incomes are between 130% and 185% of the federal poverty level. This Act further expands eligibility for free school meals if that student's household income is at or below 225% of the federal poverty level.

The Department of Education shall reimburse a public school providing a free school breakfast and lunch under this Act. Reimbursements will be equal to the difference between the federal paid reimbursement rate and the federal free reimbursement rate.

This Act does not apply to schools participating in the federal Community Eligibility Provision, Provision 1, Provision 2, or Provision 3 special assistance certification and reimbursement alternatives.

This Act takes effect immediately and is to be implemented beginning July 1, 2026.